PLANNING &
DEVELOPMENT
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-26-210 / Havel Property – Assigned Zoning
Date: October 12, 2026

Background:
The item for consideration is an Assigned Zoning. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral October 12, 2026
- Public Services Committee October 19, 2026
- Second reading October 26, 2026
- Public Services Committee November 2, 2026
- Third and final reading November 9, 2026

Planning Commission Recommendation:
The Planning Commission heard this item at their February 2, 2026 meeting and recommended the Governing Body approve this assigned zoning for this parcel as part of County Pocket 10.

The Planning Commission Staff report is attached and has not been changed.

Public Comment
As of the creation of this memo (October 7, 2026), Staff has received no new inquires or comments from the public on this project. The project page on the website has received 185 views and no comments.

Attachments:
1. Ordinance
2. Planning Commission Staff Report

APPROVED as to form only:
By David Hopkinson at 4:51 pm, Oct 06 2026

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE, ESTABLISHING THE ZONING CLASSIFICATION OF AG - AGRICULTURAL FOR LAND ANNEXED TO THE CITY OF CHEYENNE, LOCATED SOUTH OF EAST FOX FARM ROAD, NORTH OF EAST ALLISON ROAD AND EAST OF AND ADJACENT TO SOUTH COLLEGE DRIVE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. Casey Havel is the owner of the below-described real property and has petitioned the Governing Body of the City of Cheyenne to annex the property described herein and to make it a part of the City:

A parcel of land being situated in a portion of the North Half of Section 10 Township 13 North, Range 66 West of the Sixth Principal Meridian, being more particularly described as follows:

Beginning at a point on the Easterly right of way of College Drive, said point also being the southwest corner of Tract 2 of Kooi Subdivision; thence along the south line of said Tract 2 S89°11'36"E a distance of 740.64 feet to a point on the boundary of Lot 1, Block 1 Read Land Addition; thence along said boundary S00°03'16"W a distance of 280.05 feet; thence continuing along said boundary N89°11'00"W a distance of 829.22 feet to a point on said easterly right of way of College Drive and the beginning on a non-tangent curve to the right; said curve having a radius of 2764.79 feet, a chord bearing of N17°40'54"E, a chord distance of 292.47 feet and a central angle of 06°03'50", thence along said easterly right of way and the arc of said curve a distance of 292.61 feet to the point of beginning;

Said parcel of land contains 5.06 acres, more or less.

Section 2. That Section 2.2.8 of the Cheyenne Unified Development Code (UDC) provides standards and procedures for zoning districts established on land or property currently without a City zone assignment, including land being annexed to the city.

Section 3. That on February 2, 2026, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zoning assignment that is the subject of this ordinance, and recommended approval of said zoning assignment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning assignment that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning

classifications of the real property as described in Section 1 is hereby established as AG - Agricultural.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 5 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon approval and publication of the affiliated annexation.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

_____
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

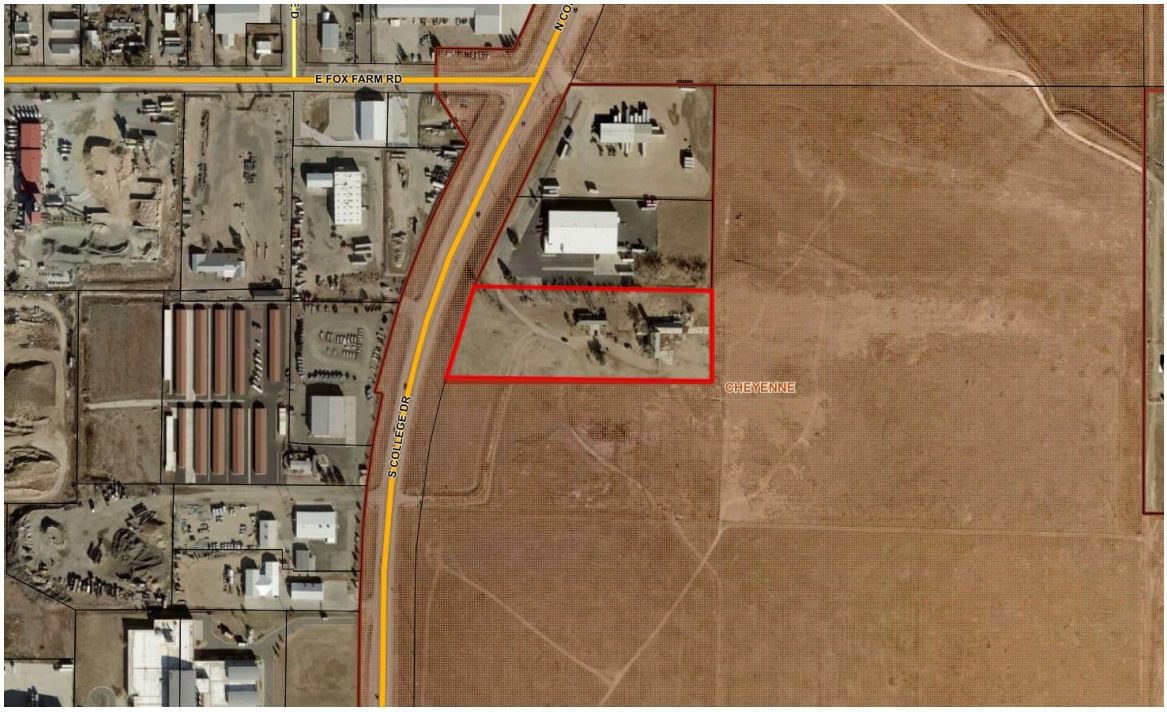
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KYLIE SODEN, CITY CLERK

Published:_____
Wyoming Tribune-Eagle

CITY OF CHEYENNE
PLANNING & DEVELOPMENT

CITY OF CHEYENNE GOVERNING BODY
OCTOBER 12, 2026
STAFF REPORT

FILE:	**PUDC-26-210: Havel Property – Assigned Zoning**
LOCATION:	South of E Fox Farm Road, north of E Allison Road and east of and adjacent to S College Drive.
REQUEST:	Assigning City zones to properties proposed for annexing.
ANNEXATION APPLICANT:	Casey Havel
OWNER:	Casey Havel
CURRENT ZONING:	County LU
PROPOSED ZONING:	AG
FUTURE LAND USE:	Mixed-use Employment
PURPOSE:	To establish a City zoning district concurrent with annexation.
PREPARED BY:	Connor White, Planner II



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning

BACKGROUND:

The applicant has petitioned for roughly 5.06 acres of land to be annexed into city limits. Annexation of a parcel requires a city zone to be established. Per UDC 2.2.8 a zone will be assigned based on allowed uses, current uses, or surrounding City zones. Should the applicant wish to have a different zone at the time of annexation, they will be required to submit a subsequent zoning map amendment, proposing a different zone. The applicant is requesting a different City zone upon annexation. The proposed zoning by the applicant is reviewed under PUDC-26-208.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1. **The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses, current uses, or surrounding City zones. Zoning shall be assigned a City zone based on:**
    a. **Permitted uses,**
    b. **Uses that could reasonably be anticipated for conditional use approval under the current zoning,**
    c. **Current uses, or**
    d. **Surrounding City zoning,**

    as deemed most suitable for the property being assigned a zone in terms of allowing the landowner to continue the current use of the land while respecting the current and anticipated uses of surrounding property.

    Through the reviewing of the annexation petition area, the assigned zoning is fairly straightforward.

    The land is currently zoned LU – Land Use within the County. The City zone adjacent to this area is BP – Business Park to the south and east. The surrounding County zone is LI – Light Industrial to the north and west. The land is currently a residence and agricultural use. Surrounding uses are mainly industrial and warehousing, with vacant land to the east and south. The AG – Agriculture zone will allow the current uses of the property, to immediately accommodate farming, ranching, or low-impact agricultural operations and single-family residential. The AG zone is also the least intense zone district and would allow for future rezonings should the property ever wish to redevelop. Staff believes that the **AG – Agricultural** zone is the most analogues zone based on the information above.

    This assigned zoning **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

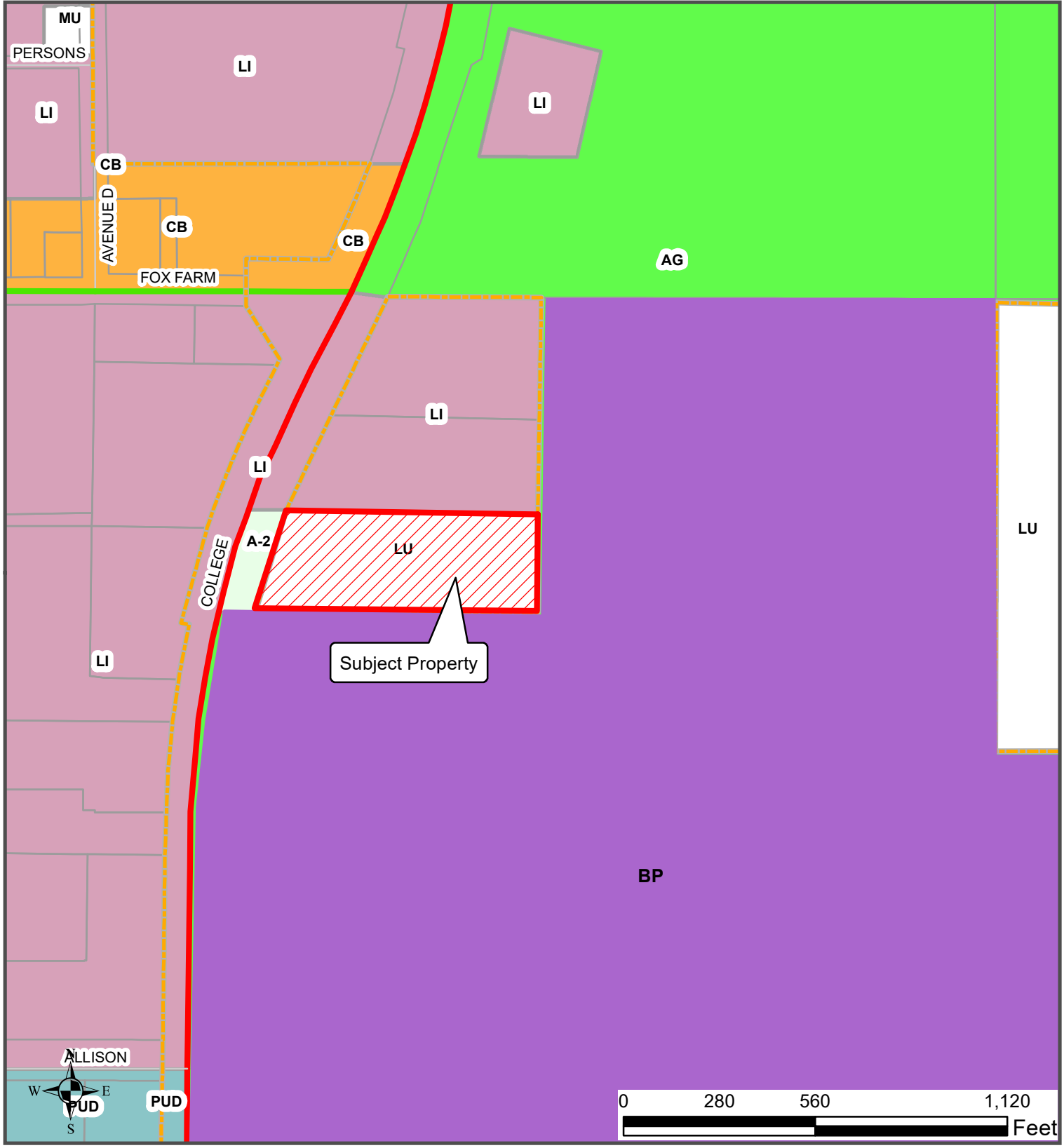
Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

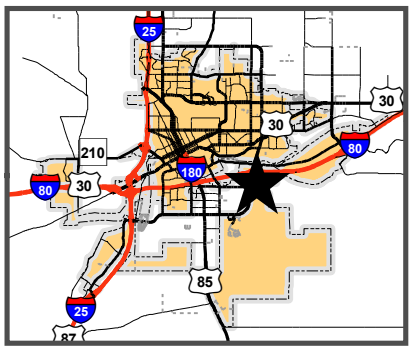
STAFF RECOMMENDATION:

Staff recommends approval of the assigned zoning for land south of E Fox Farm Road, north of E Allison Road and east of and adjacent to S College Drive to AG - Agricultural as shown in the attached zone change map, noting that the project meets the review criteria for approval.

ATTACHMENTS:

1. Zoning Map





Attachment 1: Zoning Map PUDC-26-210

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- Nov19_CityLimits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built
- HR / High Density Residential
- MR / Medium Denisty Residential
- LR / Low Density Residential
- NR-2 / Neighborhood Residential - Med. Density
- NR-3 / Neighborhood Residential - High Density
- AR / Agricultural Residential
- A-1 / Agricultural and Rural Residential
- A-2 / Agricultural
- AG / City Agricultural
- MUR / Mixed Use Residential Emphasis
- CBD / Central Business District
- CB / Community Business
- NB / Neighborhood Business
- MU / Mixed Use - County
- MUB / Mixed Use Business Emphasis
- MUE / Mixed Use Employment Emphasis
- HI / Heavy Industrial
- LI / Light Industrial
- P / Public
- AD / Airport District
- PUD / Planned Unit Development
- X / Exempt